

Rules Framed Under Prisons Act, 1894

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Rules Framed Under Prisons Act, 1894

UNION OF INDIA

India

Rules Framed Under Prisons Act, 1894

Rule RULES-FRAMED-UNDER-PRISONS-ACT-1894 of 1894

Published on 22 October 1931

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Rules Framed Under Prisons Act, 1894

Published vide Home Department (Jails) Notification No. 31354. Dated 22nd October, 1931

1724.

HOME DEPARTMENT

Jails.

No. 31354. Dated 22nd October, 1931 - The following rules have been framed by the local Government, with the previous consent of the Government-General in Council, under clause (t) of Section 60 of the Prisons Act, 1894, to regulate the custody of persons who have accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code, and are published for general information :-

Rules

1.

All persons who have accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code, shall be kept separate from all other classes of persons and shall be kept separate from each other, unless, the District Magistrate shall otherwise direct.

2.

Except under the orders of the Superintendent no jail official below the rank of Deputy Superintendent, who is in charge of prisoners of other classes, and no jail menial shall have access to any person who has accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code.

3.

The persons who have accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code, shall be permitted to associate with a person or persons of their own sex subject to the control and approval of the local Government. If it is not practicable to arrange for such association a paid warder shall be posted on duty at the ward or cell as the case may be to keep such prisoner's company.

4.

No one shall be allowed to interview a person who has accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code, without the written permission of the District Magistrate whose discretion in the matter shall be absolute.

5.

Every person who has accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code, shall be supplied with food at Government expense on such a scale suitable to his status in life as may be approved by the District Magistrate, provided that it shall in no case be inferior to the diet supplied to ordinary unconvicted criminal prisoners.

Such food shall not be prepared in the convict cook house or cooked and served by convict cooks, but shall either be cooked by the prisoner himself or by such agency and in such place either within or without the jail as may be approved by the Superintendent subject to the control of the District Magistrate.

6.

No letter, written communication of any kind, book, newspaper, packet or parcel of any description shall either be delivered to or sent by a person who has accepted a tender of pardon under the provisions of Section 337, Criminal Procedure Code, without the permission of the Superintendent under the control of the District Magistrate. The Superintendent shall be allowed to withhold and confiscate any such letter, written communication, etc.

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